

A person or company that applies for an approved arrangement must undergo the fit and proper person (FPP) test.

We need to determine that you and your associates can:

- carry out biosecurity activities
- demonstrate integrity required to import agricultural goods into Australia.

This is a requirement under Section 530 of the Biosecurity Act 2015.

Who must do the test

The test is applied to:

- you, the applicant
- company directors
- key people in management or control
- ‘associates’ of these people

If you are completing the application on behalf of another person, make sure you have the authority to do so.

Check your associates

As part of the AA application process, you must:

- identify associates relevant to the proposed arrangement
- undertake appropriate checks of all your associates.

Provide the relevant information in the FPP section of the application.

Definition of an associate

An associate is anyone who could control, influence or monitor your biosecurity activities. This can include a:

- spouse or partner
- consultant or adviser
- employer or employee
- corporation in which the person holds shares
- family member such as children, parents and grandparents.

An associate may also be responsible for carrying out biosecurity activities including:

- the release of material from biosecurity control
- the treatment or processing of goods in accordance with prescribed conditions

- providing real-time assurances required under an AA, such as lodging entries through custom brokers or undertaking fumigation activities.

For more information see section 11 of the Biosecurity Act.

Complete the compliance questionnaire

You will need to complete the fit and proper person questionnaire on the application form.

Questions apply to you as the applicant and your associates. These can include questions relating to:

- criminal history– such as legal breaches or convictions relating to integrity and honesty
- debts owed to the Commonwealth under the Biosecurity Act or other legislation
- arrangements or approvals suspended or revoked under the Biosecurity Act or other legislation.

Your answers must be correct and complete.

We may need more details

We may ask you to provide more details about the circumstances of any of your answers. This will help us in the assessment of your fit and proper status.

If we need you to provide more details, we'll give you extra time.

Complete a declaration

You, or the person authorised on your behalf, must complete a declaration. The approved arrangement declaration is on the last page of the application form.

You must declare that:

- you have made reasonable enquiries in answering the questions.
- the information you gave is true and correct to the best of your knowledge.

To give false or misleading information is a serious offence under the Biosecurity Act.

You may be liable to a civil penalty for giving false or misleading information.

How we assess you

To determine if you are a fit and proper person, we will consider the:

- circumstances of your case
- context of the activities in which you are or will be engaged.

We may research information about you or your company for inclusion in an FPP report.

The FPP report contains the following information:

- any debts owed to the Commonwealth (associate and entity)
- criminal records - such as convictions, contraventions or penalties of the State, Territory or Commonwealth laws
- false or misleading statements or inaccurate information given in applications
- previous failures to comply with regulatory directions
- refused, suspended or revoked approved arrangements, licences or permits
- findings about associates (using the same criteria as applied to the applicant)
- any other relevant matter.

We will consider your information and decide whether to grant an approved arrangement.

We may refuse your application based on the information in the FPP report.

If the arrangement is approved, the applicant becomes a biosecurity industry participant. This means they are responsible for carrying out, and being accountable for the biosecurity activities covered by the arrangement including those relating to specified goods or premises.

Maintain your biosecurity obligations

You must continue to meet all biosecurity obligations. This includes having appropriate controls in place to manage the biosecurity risks associated with your arrangement. To do this, you need suitable structures, procedures, systems, and appropriately skilled staff.

We expect you to:

- make reasonable enquiries in respect of the information you provide
- provide true and correct information on all applications and documents
- provide the full facts and circumstances if you seek advice from us
- notify us of any changes to the arrangement
- notify us of potential change to your fitness and propriety (in relation to the fit and proper person test)
- provide us with reasonable assistance and information we may request.

We will:

- help you understand your rights and obligations
- make it as easy as possible for you to meet your biosecurity obligations
- support those who want to do the right thing
- pursue those who may opportunistically or deliberately provide false or misleading information.

We conduct regular compliance checks.

If we find changes to your risk assessment we may need to reconsider your fit and proper status.

Contact us

Call 1800 900 090 or email aa.canberra@aff.gov.au

Disclaimer

This guidance is provided for general information only. We do not advise on how to apply the Biosecurity Act to your circumstances. We do not approve a particular strategy or course of action in a particular matter.

Source: <https://www.agriculture.gov.au/biosecurity-trade/import/arrival/arrangements/fit-proper-person>